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UTDSP5002

Use of University Facilities

Policy Statement

Subchapter A: General Provisions

Section 48.01: Purpose and Application

The property, buildings or facilities owned or controlled by the U. T. System or U. T. Dallas are not open for assembly, speech, or other activities as are the public streets, sidewalks and parks. The responsibility of the Board of Regents to operate and maintain an effective and efficient system of institutions of higher education requires that the time, place, and manner of assembly, speech, and other activities on the grounds and in the buildings and facilities of the U. T. System or U. T. Dallas be regulated. Acting pursuant to the general authority of *Texas Education Code Chapter 65* and the specific authority of *Texas Education Code UTDSP5005*, the Board of Regents adopts and promulgates rules and regulations relating to the use of buildings, grounds and facilities for purposes other than programs and activities related to the role and mission of the U. T. System or U. T. Dallas. Those rules and regulations are summarized in this chapter to inform students and student organizations of their rights and responsibilities for use of university facilities.

No person or organization may use a University facility for any purpose other than in the course of the regular mission of the U. T. System or U. T. Dallas, unless authorized by the *Regents' Rules*. Any authorized use must be conducted in compliance with the provisions of the *Regents' Rules*, the approved rules and regulations of U. T. Dallas, and applicable federal, state, and local laws and regulations.

The University permits the orderly use of its buildings, facilities, or grounds as provided in this Chapter to further the educational process. The University does not endorse any statement or activity that does not represent official University action.

This Chapter summarizes institutional rules for the reservation of University facilities; the identification of persons present on University property; and the use of alcoholic beverages on University property. Speech, assembly, and expression by students, faculty and staff on University property is further protected and regulated in UTDSP5001.

Section 48.02: Appeal

A student organization aggrieved by a decision under this chapter is entitled to appeal the decision to the dean. The written appeal shall be submitted on or before the fifth weekday after the decision is announced. The appeal shall contain the organization's name and mailing address, a concise description of the decision, the organization's reasons for disagreeing with the decision, and the date the decision was announced.

Section 48.03: Definitions

As used in this Chapter, unless the context requires a different meaning,

1. "adviser" means a member of the University faculty or full-time staff who advises the members of an organization;
2. "weekday" means Monday through Friday except for official University holidays; "day" means calendar day;
3. "dean" means the Dean of Students or the dean's delegate or representative;
4. "Registered faculty or staff organization" includes a registered faculty or staff organization under Regents' Rules;

5. "Registered student organization" includes a student organization registered under UTDSP5013; the phrase also includes Student Government and any subdivision thereof;
6. "student" means a person enrolled at the university;
7. "university" means The University of Texas at Dallas; and
8. "university facility" includes any room or space, indoors or outdoors, owned or controlled by the University.

Subchapter B: Reservation of a University Facility

Section 48.04: Permission to Use

Academic and administrative units, and registered student, faculty, and staff organizations may reserve the use of a university facility for purposes permitted by the *Regents' Rules*.

The Student Government Association, a registered student, faculty, or staff organization or an alumni association may not reserve or use property, buildings, or facilities owned or controlled by the U. T. System or U. T. Dallas for the purpose of engaging in any project or program with any association, organization, or corporation, or with any individual or group of individuals that are not registered.

An organization with a reservation has the right to the reserved room or space for the time covered by the reservation. Any person or organization using or occupying the room or space without a reservation must yield control of the room or space in time to permit any organization with a reservation to begin using the room or space promptly at the beginning of its reserved time.

Reservations are not required but are strongly encouraged. A person or organization planning to use a room or space without a reservation may find the facility locked or in use by another person or organization.

Section 48.05: Application

An organization wishing to reserve the use of a university facility shall apply in writing on a form prescribed by the dean.

An application for the use of any university facility must be made at least forty-eight (48) hours before the time the event is scheduled to take place.

Section 48.06: Consideration of Application

The dean shall approve a properly completed application to reserve room or space unless the dean finds that:

1. the university facility requested is unavailable or is inadequate to accommodate the proposed use;
2. the applicant is under a disciplinary penalty prohibiting reserving the use of a university facility;
3. the proposed use of the room or space would violate Regents' Rules;
4. a university facility requested for other than a class day cannot conveniently be made available on that day;
5. the proposed use would constitute an immediate and actual danger to students, faculty or staff or to the peace or security of the University that available law enforcement officials could not control with reasonable effort;
6. the applicant owes a monetary debt to the University and the debt is considered delinquent;
7. the proposed use of the room or space would violate reasonable and nondiscriminatory fire, health or safety standards.

If the dean does not approve an application under Subsection (a), upon request the applicant will be given a written statement of the grounds for refusal, within three weekdays.

Section 48.07: Identification Required

Any person shall identify himself or herself when requested by an institutional representative while on any property or in any building owned or controlled by the University or the University of Texas System. A person identifies himself or herself by:

1. giving his or her name and complete address substantiated by a current driver's license, voter registration card, or other official documentation; and
2. stating truthfully whether he or she is a student or employee of the University or University of Texas System.

An 'institutional representative' is:

1. any regent, executive officer, administrative officer, attorney, peace officer or security officer of the University or the U. T. System.

Any person who refuses to identify himself or herself in accordance with this Subsection may be convicted of a misdemeanor punishable by a fine of not more than \$200.

Any student, faculty, or staff who refuses to identify himself or herself in accordance with this Subsection is subject to disciplinary action, including expulsion from the University in the case of a student.

Section 48.08: Alcoholic Beverages

The use of alcoholic beverages is prohibited on property and in buildings and facilities owned or controlled by the University or the U. T. System. However, the chief administrative officer of the University or the U. T. System may waive this prohibition with respect to any specific event sponsored by the University or the U. T. System. An event is sponsored if a budgeted office, department, or division of the U. T. System or U. T. Dallas is responsible for organizing the event, inviting attendees, and paying expenses related to the event, including the purchase of food and beverages. Meetings or events sponsored by registered faculty, staff, or student organizations are not events sponsored by the University or the U. T. System. State law relating to alcoholic beverages will be strictly enforced at all times on property and in buildings and facilities owned or controlled by the U. T. System and its component institutions.

Section 48.09: Animals on Campus

With the exception of certified support animals and animals involved in approved University activities, animals are not permitted in any university building. Animal(s) may be brought onto campus, other than in buildings, but should be appropriately restrained and/or contained. The owner shall be responsible for cleaning up after the animal.

Section 48.10: The Use of Facilities for Weddings

The President of the University, or his or her delegate, may designate one or more indoor and/or outdoor areas that may be used for weddings, subject to the following conditions:

1. Requests for use of such space must be made at least fourteen (14) days in advance;
2. Use of such space for activities of the University shall have priority over weddings;
3. A charge for the use of such space will be made that at least recovers the actual cost;
4. The user shall be required to complete a Facilities Use Agreement and provide for adequate insurance.

CONTACT US

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Contact the Policy Coordinator

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